

FEBRUARY

20th

1922

25c

PUBLISHED
THREE TIMES A MONTH

Adventure



Talbot Mundy
William Wells
Hugh Pendexter
W. C. Tuttle
Robert Simpson
Harold Lamb
J. D. Newsom
Charles Victor Fischer
E. E. Harriman
Harrison R. Howard

HP

FEBRUARY

20th

1922

25c

PUBLISHED
THREE TIMES A MONTH

Adventure

Talbot Mundy
William Wells
Hugh Pendexter
W. C. Tuttle
Robert Simpson
Harold Lamb
J. D. Newsom
Charles Victor Fischer
E. E. Harriman
Harrison R. Howard



The Project Gutenberg eBook of Wise Men and a Mule

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Wise Men and a Mule

Author: W. C. Tuttle

Release date: November 26, 2021 [eBook #66823]

Most recently updated: October 18, 2024

Language: English

Original publication: United States: The Ridgway Company, 1922

Other information and formats: www.gutenberg.org/ebooks/66823

Credits: Roger Frank and Sue Clark

*** START OF THE PROJECT GUTENBERG EBOOK WISE MEN AND
A MULE ***



Wise Men and a Mule

by
W.C. TUTTLE

WISE MEN AND A MULE

by W. C. Tuttle

Author of "Tippecanoe and Cougars Two," "Powder Law," etc.

"She's the beautifulest story ever wrote. I tell yuh she's a dinger, and I'm a heap in favor of showin' it to the multitude, *ad lib*, also visibly."

"Magpie" Simpkins shifts his feet on the table and leans back in his chair, acting like he's said something real smart.

"The best ever told," admits "Old Testament" Tilton. "I longs to see it portrayed piously and with feelin' aforethought."

"But can she be done?" asks Wick Smith. "The time is short."

"Piperock can do anything she sets out to do," states Magpie.

"And everything else that could possibly happen between the time she starts and the time she finishes," says I.

"I figured it was about time for you to say something, Ike," opines Magpie.

Me and "Dirty Shirt" Jones wasn't invited to this conference, but we're there anyway. Buck Masterson, Wick Smith, Judge Steele, Old Testament and Magpie are the committee. Dirty said there'd likely be need of substitutes before the meeting had gone far, so we took it upon ourselves to attend.

“Three wise men won’t be hard to find,” opines Buck.

“Town’s full of ’em,” says Dirty. “Why stop at three?”

“You’ve spoke your piece, Dirty,” states the judge.

“We’ve got to have a star, ain’t we?” asks Buck.

“Yeah, we sure have,” admits Wick.

“Beyond the shadder of a doubt in my mind,” says the judge. “The star must be there, sheddin’ its effulgent rays across the desert, lightin’ up the—uh—place, as it were. It’s goin’ to be hard to get a suitable camule or camules.”

“Camule?” asks Buck. “Them humpbacked quadruples?”

“Cam-el,” corrects Magpie. “Yeah, we’ve got to have one. We’ve got to have a lot of presents and——”

“Who’s going to be Sandy Claws?” asks Dirty.

“Nobody!” snaps Magpie. “Them things are out of date. We’re just steppin’ along ahead of them ancient has-beens, yuh betcha. Nobody can go home from this celebration and say we had the same old stuff.”

“Be —— lucky if they has the use of their vocal cords ten days afterwards,” opines Dirty. “Piperock’s Merry Christmas has always knocked —— out of Happy New Year’s. I suppose you’ll frame up a death trap and charge us a dollar apiece to get butchered for a Piperock Holiday.”

“This is goin’ to be free,” states Magpie.

“Just like a suicide,” sighs Dirty.

“Since when was you and Ike Harper invited to this meetin’?” asks Wick. “Pears to me——”

“We’re going out,” says I, “but before we erases ourselves from your presence we’d like to orate open and free that we will not be part, parcel nor accessory to anything pertaining to or being of a Piperock entertainment. We will not do this nor that, and neither will we do thus and so. We will toil not and neither will we spin to any extent. Our hearts are hard and our minds are made up like a mule’s.”

“Better wait until you’re asked,” advises Magpie.

“No trouble to sound a warning,” says Dirty Shirt.

“You’d ask in vain, Magpie,” says I.

“I am full of wisdom——”

“Don’t argue with that animated flagpole,” says Dirty. “You never get no place talkin’ back to him, Ike.”

Dirty was right. I might as well argue with the shadder of death, because Magpie can’t hear nothing but his own voice in a argument, and he knows he can hoodle me into places where an angel couldn’t find footing nor room to flop its wings.

I’m sleeping real hard when Magpie comes home that night, and he proceeds to sit down on me, yanks my off ear and yells—

“Ike!”

I shoves him off and sets up, covering him with my gun.

“Ike,” says he, sober-like, “what is there around here that looks the most like a ca-mel?”

“It’s a neck-and-neck race between you and Maud S.”

“Thanks.”

He takes off his clothes and goes to bed, kinda chuckling to himself. Maud S wasn’t no relation to the famous trotting mare of the same name, unless you figure back to the dim and distant past to the time when the devil got sore at a balky horse. He tried to haul it along by the ears, but the horse dug in his hoofs, the same of which stretched them ears a heap. When the devil saw what he’d done, he laughed. The horse, being kinda sore, ruined its vocal cords mocking the devil’s laugh. That’s how we got our first mule.

Looking at Maud S from all angles I’d opine that she was the second mule.

Maudie was long. I don’t think I ever seen so much mule all in one piece. Maud’s neck was long and looked like it might fall off any old time and bust her crop-eared head. Her feet never wore shoes, and the ends of her hoofs turned up like the ends of ski snowshoes. Maud was cock-eyed in her one glass-eye, and her heart was bitter toward mankind.

Wick Smith owned her. He tried to sell her to a Piegan Indian, but the old buck got one look at her and said—

“*Diaub seahhost! Klahowya!*”

The same of which means—

“Eyes of the devil! Good-by!”

Of course Maud ain’t no cam-el, but she ain’t so danged far removed as yuh might think. The next morning Magpie gets a heap enthused over their

meeting.

“We sure planned out some *hy-iu* festival. Goin’ to be great, Ike. Sacred, solemn and satisfactory from all points of the compass.”

“Undertakingly speaking?”

“Not this time. There ain’t going to be no guns allowed. Every puncher will have to leave his gun at the door. See the idea? Bill Thatcher says he won’t bring no orchestra, but we’ll have one just as good. Ricky Henderson has mastered the flute, and Wick Smith’s new drum is due here today.”

“That’s a —— of a orchestra.”

“Yeah? ‘Frenchy’ Deschamps fell out with Bill Thatcher, and he’s goin’ to play his jew’s-harp in our orchestra. That makes three good pieces for our side, Ike.”

“Tin whistle bass drum and a pneumonia noise.”

“Mm-m-m-m, well, it won’t be no Suzer’s band, that’s a fact, but it’ll be music. Matilda Mudgett is going to sing something sacred, and Wick says that his wife wants to recite.”

“Anything that Matilda could sing would seem sacred,” says I.

“She could sing the ‘Lone Star Trail’ and make it sound like ‘Rock of Ages!’ Magpie, a face like hers would drive the evil from a burro’s soul.”

“Uh—I almost forgot, Ike. You’re going to be a wise man.”

“You’re danged well right I am. I’m going to be so wise that I won’t be within seven miles of here on Christmas Eve. I ain’t going to be wise—I’m wise right now.”

“You and Dirty Shirt and Half Mile Smith.”

“No-oo-o-o!”

“If you’d rather have some other two men—get ’em, Ike. I’m leavin’ that part of it to you.”

“No-o-o-o! I won’t speak to nobody. I’m deaf and dumb. You and your entertainment can go plumb——”

“Well, now that it’s all settled I feel better, Ike. You corral Dirty and Half Mile and bring ’em over to the Mint Hall tonight, and you’ll find out what you’ve got to do.”

“Magpie Simpkins, for gosh sake——”

“Ike, I’d tell yuh if I knowed, but I don’t. Old Testament knows just what you’ve got to do, so be patient.”

I finds Dirty Shirt in Buck's place, and he's inoculated against rattlesnakes. Dirty is bow-legged and cock-eyed, and wouldn't be no beauty if he wasn't. I tells him what has come to pass, and he listens close-like. Then he steps inside, yanks out his six-gun, and rings the little bell on top of the Mint Hall three times in a row. Then he puts his gun back and cocks his eye at me.

"I ain't drunk, that's a cinch. Mebbe my hearin' is weak, Ike. Say that all over again, will yuh?"

I explains once more. Dirty nods foolish-like.

"Sounded the same both times, Ike. What does a wise man have to do?"

"I don't know, Dirty. We'll find Half Mile and then they'll explain it to us."

"Half Mile's in jail. He shot three times at 'Scenery' Sims, and Scenery put him in jail for it. Here comes Scenery now."

There ain't no description to fit Scenery, except that he's about five feet tall and his voice squeaks and his mustache only grows at the corners of his big mouth, like the whiskers on a bobcat. He continues to be our sheriff, because nobody has took the time to kill him, except some poor shot, like Half Mile.

We explains the proposition to Scenery, and asks him will he let Half Mile be a wise man.

"How about me?" asks Scenery. "Half Mile ain't got no sense. I studied ellie-cu-shun oncet, and I've got a lot of natural sense about things like that."

"We don't give a ——," says Dirty Shirt, "only we wants to die in good company, Scenery."

"Bein' the sheriff I'll see that they don't get rough."

"Since when has a sheriff been able to intimidate these Yaller Rock snake hunters?" I asks. "The sight of you up there, Scenery, would be like wavin' a red rag at a bull."

"Nawsir," squeaks Scenery. "And besides they ain't goin' to be allowed to bring in no guns, so the judge tells me."

You can't argue with no tin whistle like that, so we takes him with us to our cabin, where we finds Magpie, Old Testament and the judge. We

explains that Half Mile is in jail and that Scenery is desirous to be wise. Magpie says:

“That’s all right, if he keeps his mouth shut, but we don’t want no wise man with a squeaky voice. We’ll let Ike speak all the words what is spoke.”

“I can talk,” says Dirty Shirt, “and I’ve studied ellie-cu-shun. I can make gestures, y’betcha.”

“We ain’t usin’ none in this ta-blew, Dirty,” states the judge.

“She’s to be pulled off almost in the dark, bein’ as she’s a night pitcher, and gestures ain’t goin’ to do nothin’ but mebbe ruin the thing. You hang onto your gestures and let nature take her course.”

“Talk ain’t much without yuh gestures,” complains Dirty.

“Your talk wouldn’t be much with ’em!” snaps Magpie. “Shut up.”

“If you knowed anythin’ about ellie-cu-shun, you’d ——”

“If you’re goin’ to be a wise man, Scenery,” says Magpie, soft-like, “you’ll practise up right now by keepin’ your —— mouth shut. *Sabe?* Go ahead and gesture if yuh want to, but keep still.”

“Well, if I can’t talk, I won’t, but jist the same——”

“Stop!” howls Magpie. “Scenery, if you don’t shut up you’ll never live to run for office again.”

“I ain’t goin’ to run again,” says Scenery. “I wouldn’t have the job again.”

“Judge,” says Magpie, “we’ll let a certain few bring their guns inside the hall. Now, let’s get down to business. Is Pete Gonyer makin’ the star?”

“Moon. He had a round piece of glass, but he says there ain’t no danged way he can cut a star. Moon will do as well, won’t it?”

“If we can’t get a star; but the Bible says they followed a star.”

“Yaller Rock county won’t never know that,” says Dirty. “Not if yuh don’t tell em.”

“We’re having the stage built twice as big, and then we’ll put dirt over the boards so it will look like a desert. We’ll have a curtain built along two sides and the back, and we’ve got to have them stairs braced up a little before we can bring Maud S up into the hall.”

“Is Maud S comin’ to the show?” asks Dirty.

“She’s the ca-mel,” explains Magpie. “Goin’ to fix up some humps on her back and yuh never could tell her from a ca-mel. *Sabe?*”

“Suppose she brays?” says Scenery.

“Suppose she gestures?” says Dirty. “My ——, but a mule can gesture.”

“Maud S ain’t got a kick left in her old carcass,” grins Magpie.

Just then Muley Bowles and Chuck Warner shows up, and joins us.

“Hear you’re goin’ to celebrate Christmas,” says Chuck, wiggling his ears.

“Want the Cross J quartet to sing?”

“Nope,” says Magpie. “This is goin’ to be a sanitary proceedin’, and there ain’t goin’ to be nothin’ done that might incite violence. We’re just as much obliged as though you burned your shirt, Chuck.”

“We’d sure be willing to help your ceremony,” says Muley. “We’d sing free gratis for nothin’, without chargin’ you a cent.”

“Nope. I ain’t got nothin’ against you your punchers—not as individual human beings, but——”

“I gets your meanin’, Magpie,” says Chuck. “The Cross J ain’t good enough for your danged old half-baked celebration, eh? Our harmonious voices don’t fit into your blasted old program-me. We has suffered and bled that Piperock might make a success of their unusual doings, but from now on we don’t do a danged thing to help yuh out. Your tone of voice is a insult to four of the best singers in Yaller Rock county.”

“I’m glad you understand what I meant,” says Magpie, mean-like. Muley and Chuck turns around and beats it for town.

“I reckon you know best, Magpie, but them four Cross J go-devils might do us wrong. Yuh might ’a’ let ’em sing one song,” opines Testament.

“Let’s get back to the ca-mel,” suggests Magpie.

“Let’s get away from Maud S,” says Dirty Shirt.

Then cometh Tellurium Woods, the danged old bald-headed bunch of wind. He’s got a grin on his face.

“I got a idea,” says he. “I’ll be Sandy Claws.”

“Where did yuh get it?” asks Magpie. “This is a Sandy Claw-less Christmas.”

“Aw-w-w, yuh can’t do that,” wails Tellurium. “Whatcha tryin’ to do—put the celebration on the bum? Here’s the idea: I’ll dress up like Sandy Claws, and when everybody is there and the program is about over we’ll have Wick at the door. *Sabe*? Somebody will give him messages from

Sandy Claws. Each message will show that he's that much closer. Everybody gets excited, don't yuh see, and at the right time I comes in. Fine, eh?"

"I seconds the motion," says the judge, "I remember when I was a kid _____"

"I thirds it," states Testament. "She's a pious method, Tellurium. Beats having Sandy come down the chimbley."

"Well," says Magpie, weary-like, "go ahead and do what yuh like, but I want this tab-lew to be just like I sees it. Testament, will yuh look up something for the wise men to say, and how we wants 'em to dress?"

"Yea, verily I will, Magpie."

"I can make me some whiskers out of a horse's tail," says Tellurium.

"I hope the horse sees yuh takin' them," says Magpie.

Then the meeting broke up, and we adjourned to Buck's place.

Scenery is tickled stiff to think he's goin' to be a actor, but I ain't cheering—yet. Me and Dirty Shirt are veterans in this acting game, and we knows it takes nerve, speed and a strong constitution.

The old Romans and their wild animal arena never had nothing of Piperock. She's a place where milk comes in tin cans, and the only honey is what the sand-hornets puts up for their own use. Her motto is:

"Hurrah for ——! Who's afraid of a little fire?"

In Buck's place we finds Muley and Chuck, and pretty soon Telescope Tolliver and Henry Peck comes in, which makes the Cross J quartet complete.

"They won't let us sing, Telescope," says Muley, sad-like.

"They won't?" says Telescope, surprized. "Won't let us sing?"

"Not a note. Not only that but they insults us a heap."

"Well," says Henry Peck. "Well, the nerve of the pelicans."

"Don't blame us," says Dirty Shirt. "We ain't got a danged thing to do with it—not even the disposition of our own re-mains after the massacree is over."

"They won't let us sing," repeats Telescope. "Whatcha know about that?"

"Not even sing free," admits Chuck, wiggling his ears real fast. "It ain't reasonable. Why, they won't have no music a-tall. Bill Thatcher's orchestra

ain't comin'. Bill said it cost him a new bull fiddle and a drum every time he played here, and he's savin' up to buy a slip-horn."

"You ought to be glad," says Dirty Shirt. "You sure ought to, boys."

"It's a insult to harmony," says Telescope. "We've almost got to the point where we can sing 'Tentin' Tonight,' with variations, and our 'Sweet Marie' sure does make the shivers run up your spine. 'Jay Bird' Whittaker says it's got anything beat he ever heard since he busted the ear tubes of his talkin' machine."

"What kind of a act does you perform, Dirty?" asks Hen Feck.

"I portrays Wisdom," says Dirty. "There's three of us, Hennery, three of a kind against a full house."

"Wisdom," proclaims Muley, "Wisdom consists of more than three things, Dirty. No three men can portray wisdom."

"We're goin' to give her a try, Muley. Me and Ike and Scenery."

"Wisdom—!" grunts Telescope. "You three?"

"And Maud S," adds Dirty, sad-like.

"Oh," says Chuck. "Oh, yeah. Well, mebbe you'll get away with it."

According to all we can find out, Christmas is the time of peace on earth and plenty of good-will to everybody. She's a time when the lion and the lamb lies down together, and the cowpuncher forgets that there is such a thing as a sheep-herder. It's a time when men's hearts are filled with love toward their fellermen, and a six-shooter is only a ornament; a time, when you can say, "Yoo-hoo" to a horse-thief, without expecting to grab a harp the next minute.

"Yea, verily," as Testament says. "It is a time when grown men become like little children. Yeah, that's a fact—mentally. Piperock ain't got any too much sense when she's acting growed up; but right now—huh!"

There ain't no reason why a lot of disreputable snake-hunters can't spend their Christmas in Paradise or Curlew; but they don't. Nope. They clutters up Piperock to partake of our good cheer. Me and Dirty looks over that aggregation of incompetents, and the sight drives all wisdom, peace and good will from our hearts.

"Big Foot" Forrest, "Cactus" Collins, "Mex" Mason, "Pole-Cat" Perkins, "Haw" Harris, et cettery, running the gamut of undesirable horse-thieves. "Hassayampa" Harris, who is a uncle of "Haw," brings his bunch of hard-

boiled punchers over from Curlew, and Mike Pelly heads the aggregation of incompetents from Paradise.

The Seven A, Triangle, Five Dot, Circle C and the Cross J all cometh to hive up in Piperock and partake of the Christmas cheer, and everything else that might come to pass. They've got the Mint Hall decorated for the occasion, and so forth. They built the stage out until she's about twenty feet square, and about five feet high.

A couple of horse-thieves, who studied art in the penitentiary, painted the scenery. It's canvas hung at the back of the stage, and they painted it black and put on a lot of white stars. Sticking in the middle of the canvas is kind of a lantern rigging, with a round glass in it and a lamp inside.

"That's the moon," explains Magpie. "When this is pulled off that will be the only visible light. *Sabe?* Desert, yuh understand? We're goin' to put some rocks and a bunch of cactus on the stage."

"What do we do?" squeaks Scenery.

"You will be asleep," explains Testament. "The lamp will be turned low and have a cover over it. Everything will be still. I'll have somebody behind the curtain to take off the cover of the moon, and slowly turn up the lamp. One of you wise men wakes up and sees the dim light. You wakes up the rest of the bunch, and you all stands up, looking at the light.

"Then you—Magpie. I reckon we better have the mule layin' down, hadn't we? Well, you wakes up the mule, and then you all starts walking slow-like toward the back of the stage, and then we drops the curtain. That's all there is to it."

"We'll have to throw that mule," opines Wick. "Better hawg-tie it, too, and let somebody cut the ropes when they're ready to go. The humps are all ready to be cinched on."

"What do we wear?" I asks.

"My wife is makin' the costumes out of gunny-sacks," says Wick.

"We've got to have something what looks like presents," opines Testament. "I've got a picture, which shows a lot of vases and stuff like that."

"My wife's got some stuff that will be just the cheese," says Wick. "We'll use some of her chiny vases."

"What do we have to say?" asks Scenery.

“Ike will do the sayin’,” says Magpie. “He’ll be the one what wakes up first and he will say—uh—what was it, Testament?”

“Lo, there shineth a bright light. Let’s go to it.”

“My——!” gasps Dirty Shirt, pious-like. “But save the wimmin and children first.”

“It’s sure goin’ to be a wonderful thing, and will teach a moral,” says Testament.

“Yes,” says I. “And the moral is: Let well enough alone.”

“I’d ought to say them words,” squeaks Scenery. “I think a thing like that needs appropriate gestures, and I’ve studied——”

“Might be better,” says Wick. “Gestures helps a lot. Remember Willyum Jennins Bryan, when he was preachin’ fer silver. If Scenery would sort of loosen up his vocal cords a little——”

“Let him say ’em,” says I. “I’d hate to pass out with them words on my lips. Scenery, you’re elected.”

“All right,” squeaks Scenery. “I’ll study up my ellie-cushun a little. Feller gets kinda rusty, you know it.”

“Yeah,” admits Magpie, “and kinda squeaks. You don’t need study—you need some kerosene and then a application of axle-grease, Scenery.”

The next morning we took Maud S up the steps into the hall, and I’m here to say that Maud S made life miserable for us. A mule is hard to argue with on the level, but try getting one half-way up a stairs and have it stop to think. We took Maud S in sitting down, bucked her onto the stage, where she lays down and refuses to get up.

“Fine!” says Wick. We “won’t have to hawg-tie her.”

“Stage fright,” opines Magpie.

“Safety first,” says I. “Animals have instincts, and hers is to get below the line of fire.”

Me and Dirty meets the Cross J quartet, and they’re getting cheerful.

“No,” says Muley, “we ain’t goin’ to no celebrashun. They have done us dirt and we sickens to our soul at their per-fid-i-tee.”

“Sheveral per-fid-i-tees,” nods Telescope. “Group aroun’ me while we shing a shong of gladness over the merry Chris’mas time. All together now:

“Oh, the coyote said, I’m better than a puncher,
With a gun that goes blam, blam!

He may die and go up to heaven,
But his skin ain't worth a ——"

"You sure does get into the Christmas spirit," opines Dirty. "That's one of the sweetest things I ever heard."

Then I calls Dirty outside, and I says to him, like this:

"Dirty, me and you have got to stay sober. A drunk ain't goin' to have no chance a-tall in there if anything goes wrong. If we hangs around with them celebratin' shorthorns we won't be in no shape to get up and foller that star. We'll be just like Maud S, which can't or won't get up."

"That's right, Ike. We'll get a couple of quarts for ourselves and keep away from them hard drinkers. Don't yuh reckon Maud S will get up at the right time?"

"She's plumb rooted, Dirty."

"Uh-huh. I know how to do it, Ike. Come on."

Dirty went over to Wick's store, and later on I meets him; and we goes up to my cabin.

We've got them two quarts of hooch, so we has quite a little time of our own, waiting until the afternoon gets to the sere and yaller leaf. I wakes up and finds Dirty with flour all over his clothes, but he won't tell what he's trying to do.

Magpie hunts us up and acts peevish toward us.

"Gosh a'mighty," he complains. "Ain't yuh got no sense? We're tryin' to re-hearse and you fellers hide out down here. Come on."

We just gets to the door, when we meets Muley Bowles.

"F'r th' lasht time—do we shing?" asks Muley.

"You do not!" declares Magpie. "I thought you knowed that, Muley."

"May you resht in peash," says Muley. "May your anchestors rise up and mock you for bein' a —— fool. Autographically schpeakin':

"May your hair wear out
And your nose break off
And your teeth shake loose
From whoopin' cough.

"Thish is the best wishes of your friend Muley Bowels, E-squire, December twenty-fourth."

“Tha’s good,” says Dirty. “That’s fine. Roshes are blue, vi’lets are pink—uh—no, that ain’t it. Vi’lets are red and roshes are blue—Haw! Haw! Haw! No knife can cut our love up. Haw! Haw! Haw!”

“Why don’t you say something, Ike?” asks Magpie. “You’re just as drunk as they are.”

“Yeah, but I’m mean drunk, Magpie. There ain’t nothin’ flowery about me. I ain’t in no mood to wish whoopin’ cough nor violets on mine enemies. Let’s go.”

“Sufferin’ sun-fish!” grunts Magpie. “Look at Rip Van Winkle.”

“It’s me—Tellurium,” says the apparition. “Don’t I look it?”

He sure did. He’s got a old bear-skin overcoat on, and about three strings of sleigh-bells around his waist. He’s got a stove-pipe hat on his head and on his chin is a bunch of whiskers made from the tail of a white horse. Personally, I think he’s the dangest-looking thing I ever saw.

“Well,” says Magpie, “you sure look it, Tellurium, but I’m danged if I know what you do look like.”

“Sandy Claws,” says Tellurium, proud-like. “I’m him. Come up to show you what can be done when you’ve got the ambition.”

“Sandy Claws?” says Magpie. “No, no Tellurium. Sandy Claws don’t look like that. What do yuh want to do—scare folks? You look like a cross between a item of natural hist’ry and a smallpox germ.”

“I comes into the program as a sort of special thing,” says Tellurium.

“No,” says Magpie, “not into my program, Tellurium. You better go out and scare coyotes with that outfit. I ain’t using no Sandy Clawses anyway.”

“I’ve went to a lot of trouble,” complains Tellurium.

“So’ve we,” says Muley. “He won’t let us shing, and now he don’t want no Sandy Clawses.”

“I’d make a good one, too,” says Tellurium.

“Yeah, you would—not,” says Magpie. “I’d just as soon see a wild bull come in there dressed like that, Tellurium. You’d ruin the show, you know it.”

“Let’s not talk to him,” says Muley. “He has no soul, Tellurium.

“He won’t let us shing. Nossir. No Sandy Claws, no shongs—where’s your ol’ Christmas?”

“Come on, Ike,” says Magpie. “Let ’em wail. I’m goin’ to pull off one show that Piperock can be proud of, yuh bet your life.”

We went up to Mint Hall. Mrs. Smith and Matilda Mudgett are there, sort of strutting around like a pair of fool-hens. Ricky Henderson, Wick Smith and Frenchy Deschamps are there, fixing their orchestra seats. Wick's new drum is there, and he's some proud of it.

"Mr. Harper," says Matilda, "have you ever heard 'Spring, Lovely Spring'?"

"Not since last April," says I.

"We are going to render it tonight," says she.

"We?"

"Me and Mrs. Smith. She has a lovely alto."

I goes over and talks to Ricky.

"Ricky, you knows something about music—what is a alto?"

Ricky thinks deep for a while, and then he says:

"Ike, did yuh ever let out a whoop, and then hear the same whoop come back to yuh? That's it?"

"I thought that was a echo."

"Yeah, sure; but that's only when yuh hear one reply. Sabe? When yuh hears two replies—that's alto. It's a Hungarian word, which means two."

"What does it mean when you hears more than two?"

"That's basso profundo, Ike."

"I thinks Maud S is paralyzed," complains Wick. "She don't seem to have no use of her legs."

"For this we offer much thanks," says Dirty.

"But she's got to get up and go with yuh," says Wick. "You can't leave her layin' there on the stage."

"She'll get up," declares Dirty. "I know a lot about mules. Lemme alone and don't worry about Maud S."

"There ain't much use of rehearsin'," squeaks Scenery; "I'm the main thing up there, and I've studied my gestures a-plenty, and I know the words fine."

"We've got to put the humps on Maud S," says Wick. "We can hang some stuff over the humps, so nobody will know she ain't a cam-el. You know how they does in a circus, Magpie?"

Me and Dirty, not wishful to get the least hazy, decides to buy us some more bottle cheer, instead of carousing around with the common herd, and we communes with each other in my cabin, until the shades of night have come down upon us. Then we finds our way back to the hall. We've got a full audience—in more ways than one. Doughgod Smith has been appointed door-keeper and he annexes our guns as we goes in.

"Yuh can't take your guns in with yuh," he states. "Them is orders."

He's got a lot of belts and holsters, but few guns hanging on a hook. Dirty looks 'em over and picks out a good-looking gun, which he shoves down inside his waistband.

"Them orders don't say yuh can't pack a strange gun, do they?"

"Not my orders," says Doughgod. "They tell me not to let any man in with his gun, that's all. You ain't settin' no precedent, Dirty. I reckon every man in the hall is packin' a strange gun, but there's one satisfaction—they can't shoot more than six time per each, 'cause I've got all their extra ammunition."

I picks out an old decrepid .44, and goes inside the hall. I looks over that congregation and I can't see where Doughgod had any reasons for being cheerful. There's at least a hundred men in there, which means six hundred shots, which is usually plenty and sufficient.

The reward notices are sure well represented, and you could just about lynch the whole bunch and not make any mistake.

We finds the acting talent behind the curtain. Scenery is all dressed up in a gunny-sack gown, with a ribbon tied around his head and no boots on. He's making gestures like a prize-fighter.

"My ——!" gasps Dirty. "Would yuh look at that?" Scenery jerks one fist outward and upward, swings the other arm behind him, like he was guarding his rear, and then squeaks:

"Lo, there shineth a bright light. Let's go to it."

"Mark an X after Scenery Sims," says Dirty. "He won't last."

We goes over where Wick is looking at Maud S. She's still laying down and don't act like she's ever get up again.

"'Fraid she's on her last legs," says Wick. "Yessir, I reckon we're goin' to lose Maudie."

"'Fraid?" snorts Mrs. Smith. "That de-eared hay-hound? Let her die."

“Not until she’s been a ca-mel, maw,” says Wick, and then he goes out to set down beside his new drum.

Dirty sets down beside Maud S and takes her head in his lap.

“Ain’t the Cross J quartet going to sing?” asks Matilda.

Old Testament shakes his head.

“Nope. They got mad—them and Tellurium. They all went home.”

“Tweet, tweet, tweet,” goes the flute.

“Bum! Bum! Bum!” goes the drum.

“Whar-r-r-oo-o-o-o-o-m-m-m-m,” goes the jew’s-harp.

“The orchestra is tunin’ up,” observes Dirty. “We ain’t got long to live, Ike.”

Then old Judge Steele steps out through the curtain, and the hum of conversation dies down.

“Feller citizens and ladies,” says the judge, “the first thing on the program is a du-it. Miss Mudgett is going to sing ‘Spring, Lovely Spring,’ with the kind assistance of Mrs. Smith. This here is a soup-ranner and alter du-it. We asks yuh to bear with the orchestra to the limit of your patience, as this is their first appearance together.”

“Who?” asks Big Foot Forrest.

“All of ’em. They’re acquainted, but that’s about all you can say for ’em. All right, Wick—let her go.”

“Tweet, tweet, tweet! Bum, bum, bum, bum! Whar-r-r-oo-o-o-m-m-m-m!”

Mrs. Smith and Matilda goes out through the curtain. Somebody laughs out loud and then comes a thud.

“All right—go ahead,” says Hair Oil Heppner’s voice. “Big Foot thought he saw somethin’ funny, but he’s forgot what it was.”

The song starts and this is how she sounds:

“Tweet, bum, Spree-e-e-hing, lovely spree-e-e-hing, tweet, tweet, bum, whar-r-r-oo-o-m, Spree-e-hing, Spree-e-e-hing, bum, bum, kerong-g-g-g, tweet, tweet.

“You cree-e-e-heep o’er me-e-e-adhows be-e-e-e-right, whar-r-r-room-m-m, bum, bum, tweet, tweet, o’er me-e-e-adhows be-e-e-e-right, bum, bum, bum, tweet, tweedle, wharoom, whar-r-r-oom——”

“Whoa, Blaze!”

I whirls just in time to see Magpie get kicked behind the knees by Maud S, who is laying down. She must 'a' just sort of cramped herself and then let fly with both hoofs.

Magpie turns plumb over and goes out through the curtain and right into Mrs. Smith, who is straining over “be-e-e-right;” and when they hit the platform she’s on top.

“From Spring to Fall!” yelps Mex Mason.

Mrs. Smith gets off poor Magpie, and lets out a wail:

“O-o-o-o-o-o-oh! Every time I try to do something, some hammer-head comes bustin’ along and spoils it!”

“Did you hit her on purpose?” demands Wick, standing up.

“Your —— mule——” begins Magpie, foolish-like.

“You done it on purpose!” howls Mrs. Smith.

Wick believed her, I reckon, cause he throwed his drum stick right at poor Magpie. It was a good shot. It came right through the hole in the curtain and it hit Judge Steele on the bridge of his nose. The old boy sort of got dignified acting.

“Wonderful,” says Dirty. “Wonderful cons’tution.”

The judge just walks around the stage, making gestures and working his lips, but there ain’t no words. Pretty soon he stops, seems to listen, and then he says, soft-like: “Guilty? Why, gentlemen, that man is as innocent as a new-born baby.”

“Knocked back seven years,” says Dirty, awed-like. “That’s what he said the time he was my lawyer, and that was seven years ago.”

The crowd out in front are talking loud, and I know danged well that there’s going to be trouble if we don’t keep going. Mrs. Smith comes waddling in, follered by Matilda and Magpie.

Mrs. Smith is sore as a boil.

“I will not sing another note,” she declares. “Every time I start to do anything in public——”

“Maud S is getting restless,” states Scenery. “We better pull off our act.”

“Can yuh get her up at the right time, Dirty?” asks Magpie.

“Get things set, and I’ll do my dangest.”

Then they cleared everybody away, while we got ready. Me and Dirty and Scenery are all dressed in them gunny-sack gowns, and have got our boots off.

They've got a big bunch of cactus and a lot of rocks, which they puts around to make it look like a desert. Pete Gonyer is behind the back curtain, ready to take the cover off the moon, and then turn up the lamp. Maud S is making funny noises in her throat, but Dirty is setting on her head.

"What's the matter with her?" I asks.

"Speed-crazy," grins Dirty.

"Get ready," says Magpie. "Now, for gosh sakes, make this look real."

They blew out all the lights except one in the back of the room, and then pulled the curtain.

"What does she represent—a load of dirt?" asks Pole-Cat Perkins.

"That's a —— of a thing to ride thirty miles to see," opines "Windy" Wilkins.

"Where is the moon?" squeaks Scenery, in a whisper. "Pete, where in —— are yuh?"

"Aw, ——!" groans Pete. "Magpie, did yuh turn out this lamp?"

"It was lit when I left there!" snaps Magpie. "You must 'a' blowed on it."

"I never blowed on nothin'!"

"Haw! Haw! Haw!" roars Art Miller. "This is one funny game. Like a minstrel show. Pete, ask him why he thinks yuh blowed on it."

Comes a little bit of light, and I feels Scenery climb to his feet. There he stands in the gloom, pointing up and down and sidewise, and then he squeaks:

"Lo, there bringth a slight—uh—slineth a bite—I mean—a—a—lineth a —let's go to it—uh—to it."

"Haw! Haw! Haw!" howls somebody. "Pete Gonyer's lightin' the moon!"

I turns and takes a look. There is Pete at the back of the stage. He's got the cover off the moon, and is trying to get the old lamp to light.

"Dang it!" he howls. "I've turned the wick plumb into the bottom!"

"Whoa, Maud!" howls Dirty. "Help me hold her, Ike!"

I turns, and there is Maud S standing on her hind legs, and, as I look, them humps, which wasn't well cinched, being as she was laying down at the time, swing down and just about fill up all the space between her front and hind legs.

"Ho-hold her!" wails Dirty; but Maud S thinks she's a circus animal.

Hold her? Man, that mule, after all these years, found out that she had authority to go to some place. She waltzes around a couple of times, busts a hole in the stage and falls over backwards into the orchestra.

Wick Smith falls over backwards, pulling his new drum over with him, thereby saving his part of the orchestra.

"Whoo-o-o-ee! Pow-w-w-der Ri-i-ver!" yowls a puncher, and a circle of chairs lands around Maud S, trying to block her, but Maud S ain't to be stopped.

She bucked plumb over the top of Wick Smith, and that drum rattled against her heels.

Zowie! She telescoped and lifted that drum with both hind feet. Dirty Shirt was just going to jump off the stage to attack her from the rear, and that drum caught him in midair. Dirty comes plumb back onto the stage and lands setting down in that bed of cactus. The drum hit me in the knees, and I went plumb over the top of it and dug my chin into the desert.

When I got my senses again I sees that about seven punchers have hold of Maud S, and are trying to hold her.

"Lights!" yelps Wick. "Light some lamps. My ——, my drum is busted!"

"—— your old drum!" howls Dirty Shirt, standing on the stage, trying to lift the seat of his pants loose from himself.

"O-o-o-o-oh, the tab-lew is ruined!" wails Mrs. Smith.

Everybody helped light the lamps, and then we stands and looks at each other. Maud S looks like her course was about run, but them punchers don't take any chances.

"Sandy Claws has come!" yells a voice at the door, and we all takes a look. I never seen anything like that apparition. It's a two-year old steer, wearing a bear-skin overcoat, with a string of sleigh-bells around it, and on the lower lip of the danged animal is Tellurium Wood's false whiskers, and over one horn is that tall hat. The steer is about half way into the hall when

we see it coming, and its tail is twisted over its back. Around its mouth is twisted a rope, which is yanked off as it humps into the door.

“Ba-a-a-rr!” blats that steer, like it hurt all over, and right up that room it comes, romping regardless of life or limb.

I know it was Chuck’s voice that yelled—

“Sandy Claws has come.”

“Ho-o-old fast!” yells a puncher, and just then the steer lams into poor Maud S, scattering the punchers. Hair Oil Heppner tries to bulldog that locoed animal, but he might as well ‘a’ tried to bulldog a box-car.

Then Maud S gets enervated again, and things begin to boil a-plenty.

“Ba-a-a-a-w!” bawls the steer.

“Ha-a-a-a-w!” sings Maud, and the both of them starts gamboling toward the stage.

“Git ba-a-a-ck!” yowls Pete Gonyer. “Daw-w-w-gone yuh, git back!”

Rip-i-i-p! The steer gets its horns into the curtain, rips about twenty feet of it loose, and starts to climb the stage.

Crash! The moon went down, and the danged old oil lamp inside exploded.

“Fire! Fire!” howls Judge Steele, and then he picks up that blazing moon and whales away at the steer with it.

Clank! The judge was left-handed, which might account for the poor throwing, but he got his feet tangled in some of that loose curtain and hit Scenery Sims right in the head with that heavy moon.

Bang! Somebody took a shot at the steer and knocked several bells, and one of them danged bells hit me in the nose. I hate to get hit in the nose with a bell. I hates to get hit in the nose with anything, but I sure does detest a bell. I can see folks going out of the door as fast as they can travel. I seen Hair Oil climbing onto poor Maud S, and then my time is all taken up with that danged steer.

All this stuff is taking place a lot faster than I can tell it. I bulldogged that steer. It was the first steer I ever tried to bulldog, and if all future steers will keep away from me it will be the last.

I hooked onto his horns just in time to feel my feet dangle off the edge of the stage, the same of which helped my act quite a lot. The steer upends from my weight, and me and that steer landed into a jumble of chairs, and

over the top of us goes Maud S, celebrating her second childhood by making Hair Oil pull leather.

The few remaining folks in the hall sort of celebrates by taking some shots at the lights, the same of which makes our immediate future kinda gloomy.

“Lo, I see a bright light!” squeals Scenery’s voice.

“Sus-sunfish, you crop-eared coyote!” yells Hair Oil, and then comes a crash of glass.

“My ——!” yells Magpie. “She throwed Hair Oil out of the window! Where are you, Ike?”

“Keep away!” I yells. “I’m paralyzed all the way down from my upper lip and I don’t know whether me or the steer is on top.”

“Paralyzed —— ——!” howls Dirty. “Wish I was. Who in —— got the idea of puttin’ cactus on the stage?”

“Look out for that mule!” yelps Magpie, and I looks up at the dim figure of that locoed mule, almost over me. I yanks away from my steer and the steer yanks right with me. Under ordinary conditions I’d ‘a’ been able to get away, but I’ve got one leg through a string of them sleigh-bells, and when that steer starts for the door, Ike Harper E-squire went right along—on the back of his neck.

I hooked a lot of chairs on my way, kinda trying to impede the hoofs of progress, but that scared steer made funny little noises and keeps going. There’s a lantern hung at the head of the stairs, and I reckon the steer was hunting for light.

Just before we hits the top of the stairs I hears a strain of quartet music:

“Tentin’ to-o-o-o-night, tentin’ to-o-o——”

Crash!

We hit the doorway with our assortment of furniture, and the next thing I know I’m amid more feller mortals and we’re all traveling the downward path. I sees some red, white and blue lights, and I’m loose. I reckon the bell strap busted. I gets to my feet, dodging stars and other aerial impediments, when the stairs almost shakes out from under me, and I gets a glimpse of Maud S falling downstairs.

Folks, I jumped—but too late. Me and Maud S landed at the bottom together. I grabs the mule with both hands, and I feels her get up with me hanging to some part of her anatomy. It’s about twenty feet from the bottom

of the stairs to the door, and I rode some part of that crop-eared mule as far as the exit, where the top of the door slapped me in the face and I went into the land of Once Upon a Time.

I'm just about to live happy ever afterwards, when something seems to wake me up. I feels a dragging sensation, along with other painful things, and then I dimly hears Dirty Shirt say—

“You’ve gotta help me, Muley.”

“I’ve gotta have a little help myself,” wails Muley. “I tell yuh that danged steer knocked me down and then the mule fell over me.”

“But poor old Ike is de-e-e-ad!” sobs Dirty.

“He’ll keep,” croaks Muley; “but I’ll spoil if I don’t have help.”

“Yuh gotta help me drag him home, Muley. You was to blame for his demise.”

“Naw, I wasn’t, Dirty. Chuck got the idea of dressin’ up that steer in Tellurium’s clothes. Tellurium was sore, too. We twisted a wire around the steer’s tail to make it bawl when the gag was pulled off.

“We just wanted to make it blat at Magpie. Nossir, yuh can’t blame us for it, ’cause that mule would ’a’ killed him anyway. I’d like to know what in —— woke up that gone-to-seed mule.”

“There ain’t nobody to hear,” says Dirty, “so I’ll tell yuh. I took a can of red pepper and a can of ginger and mixed ’em. Then I made a gob of dough in Dee’s shack and put the hot stuff in the middle. *Sabe?* Maud S. swallowed it. That’s all.”

“They’d kill us if they knew,” groans Dirty.

“Death’s stinger wouldn’t hurt me,” groans Muley.

I crawls to my feet, and they don’t see me until I’m standing up beside ’em.

“You—you—uh—” stammers Dirty. “You won’t tell, w-will yuh, Ike?”

“Ain’t you dead—yet?” gasps Muley.

“Enough,” says I, “enough to foller out the old saying—dead men tell no tales. I’ve got eyesight enough left to see the lights of Buck’s place.”

“L-let’s go tut-to it,” stammers Dirty.

Which shows that Piperock never started anything that they couldn’t finish—after a fashion.

*** END OF THE PROJECT GUTENBERG EBOOK WISE MEN AND A
MULE ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.